

June 25, 2026

Automated License Plate Reader Technology Raises Concerns Over Private Sector Compliance and Government Overreach

Kathleen McConnell, Vince Smolczynski

Seyfarth Shaw LLP

+ Follow

Contact

Automated License Plate Reader (ALPR) technology is facing increasing legal scrutiny as courts, regulators and individuals attempt to examine and expose the various ways in which license plate data is captured, collected, shared and used. Recent disputes over ALPR technology have shifted away from issues of public safety and toward whether the private sector businesses and governmental organizations, among others, that utilize ALPR adequately disclose its use and sharing, as well as implement proper safeguards around this potentially sensitive, location-based personal information.

1. Private Sector’s Failure to Disclose Use of ALPR Technology Can Be Sufficient to Constitute Harm to Consumers

The private sector’s use of ALPR technology is facing challenges and possible legal exposure. In February of this year, California’s First Appellate District addressed the requirements imposed by the state’s ALPR Law in *Bartholomew v. Parking Concepts, Inc.*, and in particular addressed what constitutes sufficient “harm” under the law to state a claim.^{1,2} In that matter, the plaintiff alleged that a parking garage owned and operated by Parking Concepts collected his license plate data without making a privacy policy regarding the collection publicly available. First, the Court

This website utilizes technologies such as cookies to enable essential site functionality, as well as for analytics, personalization, and targeted advertising. [Privacy Policy](#)

Accept

Deny Non-Essential

Manage Preferences

and how ALPR is collected and used violates an individual's "right to know" of the activity, which is sufficient to allege harm under the law.

The Bartholomew decision quickly drew the attention of plaintiffs' attorneys both in California and beyond. Because the statute provides for \$2,500 in damages per violation—and, following Bartholomew, arguably requires no showing of harm beyond the violation of an individual's "right to know"—the conditions were ripe for a surge in class action litigation.

In the wake of *Bartholomew*, nearly any commercial entity utilizing ALPR technology is potentially at risk: big-box retailers, grocery stores, hotels, college campuses, parking garage management companies, and the vendors of ALPR technology themselves. In just the few short months since the decision issued, scores of class actions have been filed claiming violations of the law. The allegations across many of the matters are similar in nature: customers of businesses allege the businesses used ALPR technology to track the movements of customer vehicles without their knowledge or consent in violation of California's ALPR Privacy Act and the California Constitution. Further, many of these suits allege that the data points collected about the consumers' vehicles, including plate number, vehicle make, model and color, were illegally shared with law enforcement agencies and databases.

2. Municipalities' Collection and Sharing of ALPR Data Questioned by California Attorney General and Private Citizens

The potential issues around ALPR technology are not limited solely to the private sector. Recently, the California Attorney General pursued litigation against the City of El Cajon alleging unlawful sharing of ALPR data with out-of-state and federal law enforcement agencies. The lawsuit highlights the AG's concern of cross-

This website utilizes technologies such as cookies to enable essential site functionality, as well as for analytics, personalization, and targeted advertising. [Privacy Policy](#)

persistent location tracking that is accessible to law enforcement. In a similar vein, privacy organizations have asserted that the City of San Jose utilized ALPR searches to permit law enforcement officers to constantly search for and reconstruct vehicle movements without judicial authorization, a process that plaintiffs contend is ripe for abuse. Other challenges to municipal ALPR programs have focused on back-end systems, including the data retention periods, search capabilities, and whether the amount of data collected and stored exceeds the purpose for collection in the first place. As concerns about ALPR technology continue to mount, several municipalities have canceled vendor contracts for the technology and discontinued ALPR use in response.

3. ALPR Compliance and Governance Frameworks for Businesses

Businesses and other private-sector organizations currently using or considering deploying ALPR technology should proactively evaluate their compliance obligations under state and local laws and regulations that govern sensitive personal information and location data. Initial steps toward an actionable ALPR compliance program involve:

- Evaluating and outlining the legitimate business purposes for collecting ALPR data;
- Establishing defined retention periods for ALPR data;
- Posting a privacy policy disclosing that ALPR is collected, processed and shared, if applicable, conspicuously on the business's website and in on-location sites;
- Limiting access controls to ALPR data; and

This website utilizes technologies such as cookies to enable essential site functionality, as well as for analytics, personalization, and targeted advertising. [Privacy Policy](#)

-
1. California Civil Code §§ 1798.90.5-1798.90.55 ↩
 2. *Bartholomew v. Parking Concepts, Inc.*, 118 Cal.App.5th 438 (Feb. 5, 2026; As modified on denial of rehearing on Feb. 27, 2026). ↩

✉ Send

🖨 Print

⚠ Report

RELATED POSTS

- [Southeastern Privacy Laws Taking Shape: Current and Upcoming Omnibus Laws for Alabama, Georgia, Florida, and Tennessee](#)
- [The Paper Trail: State Privacy Law Contracting Requirements](#)
- [California Privacy Protection Agency \(CPPA\) Finally Voted to Adopt Much Debated Update to CCPA Regulations: What Your Business Should Know](#)

LATEST POSTS

- [The Week in Weed: July 2026](#)
- [Texas Supreme Court: Documented Conduct Showing Actual Job Impairment Is Key to Avoiding Disability Discrimination Liability](#)

[See more »](#)

DISCLAIMER: Because of the generality of this update, the information provided herein may not be applicable in all situations and should not be acted upon without specific legal advice based on particular situations. Attorney Advertising.

© Seyfarth Shaw LLP 2026

This website utilizes technologies such as cookies to enable essential site functionality, as well as for analytics, personalization, and targeted advertising. [Privacy Policy](#)



Vince Smolczynski

+ Follow

PUBLISH YOUR CONTENT ON JD SUPRA

- ✓ Increased readership
- ✓ Actionable analytics
- ✓ Ongoing writing guidance

Join more than 70,000 authors publishing their insights on JD Supra

Start Publishing »

PUBLISHED IN:

Automatic License Plate Readers

+ Follow

California

+ Follow

Class Action

+ Follow

Data Collection

+ Follow

Data Privacy

+ Follow

Data Protection

+ Follow

Data Retention

+ Follow

This website utilizes technologies such as cookies to enable essential site functionality, as well as for analytics, personalization, and targeted advertising. [Privacy Policy](#)

[more](#) ▼

SEYFARTH SHAW LLP ON:



This website utilizes technologies such as cookies to enable essential site functionality, as well as for analytics, personalization, and targeted advertising. [Privacy Policy](#)